

26STCV07668 26STCV07668

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Case Number: 26STCV07668 Hearing Date: August 5, 2026 Dept: 732

Natalie Guvlekjian v. Paragon Implant Company LLC., et
al.

Wednesday, August 5, 2026

CASE NUMBER: 26STCV07668

OPPOSED

Defendants Paragon

Implant Company, LLC, Paragon Implant MFG, LLC, Gerald Niznick and John
Konheim's Demurrer
and Motion to Strike Portions of the Complaint

Facts:

This is an action for employment discrimination, harassment, and retaliation. The Complaint alleges as follows. Plaintiff Natalie Guvlekjian ("Plaintiff") worked for Defendant Paragon Implant Company, LLC and Paragon Implant MFG, LLC as a human resources manager. (Complaint ¶ 11.) While at work, the president of the company made a sexual advance toward her, which when she complained about it to the COO, she was laughed at. (Complaint ¶ 13a.) That COO to whom she complained later sexually propositioned Plaintiff himself. (Complaint ¶ 13b.) When Plaintiff revealed to her manager that she suffered from ADD, she was demoted to an administrator position which required additional accommodation for her ADD. (Complaint ¶¶ 13c–13d.) That manager refused to give Plaintiff time off to

visit her doctor, and while she agreed to permit Plaintiff to take time off to care for her sick mother, her manager subjected her to increased scrutiny, criticism, and micromanagement upon her return. (Complaint ¶ 13e.) Plaintiff went on medical leave for herself in August 2024, which was extended for several months, during which time her manager placed her on a performance improvement plan and ultimately terminated her employment. (Complaint ¶¶ 13f–13i, 14.)

Procedural History: Plaintiff
filed the Complaint on March 9, 2026, alleging 12 causes of action:

1.
FEHA Discrimination
2.
FEHA Hostile Work Environment
3.
FEHA Retaliation
4.
FEHA Sexual Harassment
5.
FEHA Failure to Accommodate
6.
FEHA Interactive
Process Violation
7.
Failure to Prevent FEHA Violations
8.
Negligent Hiring and Supervision
9.
Wrongful Termination
10. Labor

Code § 1102.5 Retaliation

11. Intentional

Infliction of Emotional Distress

12. California

Family Rights Act

Defendants

filed the present demurrer and motion to strike on May 1, 2026.

Plaintiff

filed oppositions on July 23, 2026.

Defendants

filed replies on July 29, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn. v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears

the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

Defendants Paragon

Implant Company, LLC, Paragon Implant MFG, LLC, Gerald Niznick and John Konheim (“Defendants”) demurrer to several causes of action alleged by Plaintiff Natalie Guvlekjian (“Plaintiff”). Defendants argue that Plaintiff’s first, third, fifth, sixth, and seventh causes of action are impermissibly pleaded against individual defendants. (Demurrer at pp. 8–9.) Defendants argue that he second and fourth causes of action for FEHA harassment are ill-pleaded and duplicative of one another. (Demurrer at pp. 9–11.) Defendants argue that the eighth cause of action for negligent supervision fails to plead facts establishing negligence. (Demurrer at pp. 11–12.) Defendants contend that the tenth cause of action for whistleblower retaliation fails to allege protected activity. (Demurrer at pp. 12–13.) Defendants finally argue that the eleventh cause of action for intentional infliction of emotional distress is preempted by the worker’s compensation bargain and fails to plead facts establishing outrageous conduct. (Demurrer at pp. 13–14.)

1. Individual Defendants

Defendants' argument

with respect to the first, third, fifth, sixth, and seventh causes of action is unpersuasive. Although they argue that these claims are impermissibly pleaded against individual defendants, the causes of action clearly state that they are directed against "Entity Defendants," which are defined to exclude the individual defendants. (Complaint at pp. 1, 8, 10, 13–15.) Thus this argument furnishes no basis to sustain the demurrer.

2.

FHEA Harassment

Defendants argue that the facts alleged do not support a claim for FEHA harassment because the conduct alleged is insufficiently severe or pervasive. The elements of a claim for FEHA harassment are (1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome harassment; (3) the harassment complained of was based on plaintiff's membership in the protected group; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior." (See *Guthrey v. State of California* (1998) 63 Cal.App.4th 1108, 1122.)

Courts have held

that "the exercise of personnel management authority properly delegated by an employer to a supervisory employee might result in discrimination, but not in harassment." (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64.) Harassment is said to "consist[] of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives." (*Roby v. McKesson Corp.* (2009) 47, Cal.4th 686, 707.)

But the two types of

claim are not hermetically sealed off from each other. "[T]he FEHA treats discrimination and harassment as distinct categories, but nothing in the FEHA requires that the evidence in a case be dedicated to one or the other claim but never to both." (*Roby*, supra, 47 Cal.4th at p. 710.) "[I]n analyzing the sufficiency of evidence in support of a harassment claim, there is no basis for excluding evidence of biased personnel management actions so long as that evidence is relevant to prove the communication of a hostile message." (*Id.* at p. 708.)

Defendant's

arguments concerning the severity of the alleged harassment are unpersuasive, and rely upon cases decided prior to the enactment of Government Code § 12923 in 2019. Per that statute, "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code § 12923, subd. (b).) The legislature has admonished that harassment claims are not generally susceptible to summary disposition and "involve issues 'not determinable on paper.'" (Gov. Code § 12923, subd. (e).) The cases that Defendants rely upon predate this statute and "are no longer good law when it comes to determining what conduct creates a hostile work environment in the context of a motion for summary judgment or adjudication." (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 880.) Courts have described the severe and pervasive standard under Government Code § 12923 as a "low bar." (*Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 672.)

Plaintiff's claims for sexual harassment here meet that threshold. She alleges that Defendant Gerald Niznick the president of the company, leaned over her desk, and remarking upon the Hershey's Kisses candy placed there, told her they were "not the types of kisses he wanted," which Plaintiff interpreted as a sexual advance. (Complaint ¶ 13a.) Plaintiff then states that she complained to Defendant John Konheim, the company COO, whereupon she was laughed at. (*Ibid.*) At a later date, Konheim made his own sexual advance toward Plaintiff. (Complaint ¶ 13b.) Given that these defendants were "related" and Plaintiff was an HR manager, Plaintiff alleges "was no one for Plaintiff to report this inappropriate conduct to." (Complaint ¶ 13b.) Plaintiff alleges this type of conduct was "common place." (Complaint ¶ 13b.) Plaintiff thus alleges facts sufficient to state a claim for sexual harassment.

However, Defendants' argument concerning Plaintiff's claim for disability harassment is persuasive. Plaintiff alleges no conduct by Niznick or Konheim respecting her alleged disability, and attributes the actions taken against her on that front to HR Director Robin Ireland. (Complaint ¶¶ 13c–13i.) Plaintiff alleges a demotion, a failure to accommodate her ADD, a failure to permit her to take medical leave, retaliatory scrutiny

following a return from leave to care for her sick mother, and finally performance critiques and ultimately termination while Plaintiff was on medical leave. (Complaint ¶¶ 13c–13i, 14.) Plaintiff thus alleges no harassing conduct distinct from personnel management activity in connection with her disability. (See Janken, *supra*, 46 Cal.App.4th at p. 55.) Although such conduct might form part of a hostile work environment when done in connection with interpersonal harassing conduct, Plaintiff alleges no such harassing conduct save sexual advances which have no alleged basis in her disability, and personnel management actions that are insufficient on their own to constitute harassment.

Defendant notes that Plaintiff's second and fourth causes of action are both for FEHA harassment, and that the fourth, which alleges only sexual harassment, is duplicative of the second, which alleges both sexual harassment and disability harassment. (Demurrer at p. 11; Complaint ¶¶ 28, 43.) Defendant is correct that the fourth cause of action merely repeats the sexual harassment allegations of the second. Because Plaintiff pleads a viable claim for sexual harassment, but presently pleads no such claim for disability harassment, it is proper to SUSTAIN the demurrer to the second cause of action, with leave to amend, and OVERRULE the demurrer to the fourth cause of action for sexual harassment.

3.

Negligent Supervision

“[I]n California, an employer can be held liable for negligent hiring if he knows the employee is unfit, or has reason to believe the employee is unfit or fails to use reasonable care to discover the employee's unfitness before hiring him.” (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 843.) “Liability results ... not because of the relation of the parties but because the employer antecedently had reason to believe that an undue risk of harm would exist because of the employment” (J.W. v. Watchtower Bible and Tract Society of New York, Inc. (2018) 29 Cal.App.5th 1142, 1164 [upholding allegations of negligent supervision “[b]ecause J.W. has alleged that Watchtower had knowledge of the threat posed by Simental, she has sufficiently pled facts from which Watchtower could be held legally responsible for the molestation.”].)

Defendant persuasively argues that Plaintiff has not alleged negligent hiring or supervision here. Plaintiff alleges only that Entity

Defendants had a duty to hire and supervise their managers in such a way that they would not harass their employees, and breached this duty. (Complaint ¶¶ 77–78.) Plaintiff does not plead even the ultimate fact that Defendants had prior knowledge of Niznick or Konheim's harassing tendencies before Plaintiff was harassed.

Accordingly, the demurrer is SUSTAINED with leave to amend as to the eighth cause of action for negligent hiring and supervision.

4.

Labor Code § 1102.5

Defendants argue that the ninth cause of action for whistleblower retaliation under Labor Code § 1102.5 fails because Plaintiff does not allege that she engaged in protected activity. (Demurrer at pp. 12–13.)

An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.

(Lab. Code, § 1102.5, subd. (b).)

To establish a prima facie case under this statute, "the plaintiff must show (1) the plaintiff engaged in protected activity, (2) the defendant subjected the plaintiff to an adverse employment action, and (3) there is a causal link between the two." (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592.)

The Complaint here

alleges ultimate facts constituting protected activity. Plaintiff alleges both that she complained to Konheim concerning Niznick's sexual advance, and that she complained about her demotion, which was allegedly motivated by her disclosure of her disclosure of her ADD. (Complaint ¶¶ 13b, 13c.) Although Defendant argues that these allegations do not disclose to whom she complained or what violation she complained of, the Complaint alleges that the acts complained of and reported constituted FEHA violations. (Complaint ¶¶ 13b, 13c, 80.) Although the Complaint does not allege Plaintiff's complaints verbatim, an employee is "not required to use legal terms or buzzwords when opposing discrimination." (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1047.)

Accordingly, the demurrer is **OVERRULED** as to the ninth cause of action for whistleblower retaliation.

5. Intentional Infliction of Emotional Distress (IIED)

"The elements of a cause of action for IIED are as follows: (1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress." (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273.) "Whether a defendant's conduct can reasonably be found to be outrageous is a question of law that must initially be determined by the court; if reasonable persons may differ, it is for the jury to determine whether the conduct was, in fact, outrageous." (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 534.)

Defendants argue, unpersuasively, that the IIED claim is barred by the worker's compensation bargain. (Demurrer at p. 13.) Authority holds otherwise. (Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75, 101 ["we are unwilling to abandon the long-standing view that unlawful discrimination and retaliation in violation of FEHA falls outside the compensation bargain and therefore claims of intentional infliction of emotional distress based on such discrimination and retaliation are not subject to workers' compensation exclusivity."].)

However, Defendants persuasively argue that the Complaint

does not allege outrageous conduct within the meaning of the IIED tort. While Government Code § 12923 prescribes a “low bar” for actionable harassment in under FEHA, at least with respect to dispositive motions such as this (Wawrzenski, supra, 106 Cal.App.5th at p. 672), that statute prescribes no alteration to the ordinary rule that the conduct supporting an IIED claim must “exceed all bounds of that usually tolerated in a civilized community.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.) Here, Plaintiff alleges that she suffered, over an uncertain span of time, one sexual advance by a senior company officer, was laughed at when she complained about it, and then subjected to another sexual advance by the senior officer to whom she complained. This is akin to conduct elsewhere held to be insufficient to constitute outrageous conduct. (Hughes, supra, 46 Cal.4th at pp. 1050–1051 [holding insufficient two comments directly propositioning the plaintiff for sex, and threatening adverse consequences if she did not acquiesce].) Plaintiff’s other allegations of adverse employment actions are not alleged with respect to the same decisionmakers, are alleged with respect to alleged bias against her disability, and constitute personnel management actions that are not actionable in isolation. (See Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80 [“Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society.”].)

Accordingly, the demurrer is SUSTAINED with leave to amend as to the eleventh cause of action for IIED.

In summary, the demurrer is SUSTAINED with leave to amend as to the second, eighth, and eleventh causes of action, with leave to amend. Any amended pleading shall be filed within 20 days of this order.

I.

MOTION TO
STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1)). The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. (California Rules of Court Rule 3.1322.)

The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a)). The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

Defendants move to strike Plaintiff's prayer for punitive damages as being supported by insufficient facts, and to Plaintiff's prayer for attorney fees in connection with the ninth cause of action for wrongful discharge. (Motion at pp. 5–8.)

Punitive damages are allowed in non-contract cases when a defendant is guilty of "oppression, fraud, or malice" (Civ. Code § 3294, subd. (a).) The terms are defined as:

1.

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2.

"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3.

"Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294, subd. (c).)

Something more than the mere commission of a tort is always required for punitive damages. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894.) Proof of

negligence, gross negligence, or recklessness is insufficient to warrant an award of punitive damages. (Dawes v. Sup.Ct. (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) Punitive damages may be recovered in an action for negligence or other nonintentional torts if the plaintiff pleads and proves that the defendant acted with the state of mind described as “conscious disregard” of the potential dangers to others. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) When malice is based on a defendant’s conscious disregard of Plaintiff’s rights, the conduct must be both despicable and willful. (College Hospital v. Superior Court (1994) 8 Cal.4th 794, 713 (“College Hospital”).)

Plaintiff’s

Complaint adequately alleges malicious and oppressive conduct. Plaintiff alleges harassing conduct and a series of adverse employment actions, including demotion and termination, that she straightforwardly alleges were intentional, retaliatory, and discriminatory. Such allegations, in connection with the alleged conduct, support a prayer for punitive damages. (See Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6 [“Taken in context, the words “wrongfully and intentionally” in paragraph eight describe a knowing and deliberate state of mind from which a conscious, disregard of petitioner’s rights might be inferred a state of mind which would sustain an award of punitive damages.”].)

Defendants’ arguments as to the prayer for attorney fees, meanwhile, properly await adjudication in a motion for attorney fees at the conclusion of the action. Plaintiff alleges entitlement to fees in her claim for wrongful discharge via Code of Civil Procedure § 1021.5. (Complaint ¶ 84.) Fees are allowable under Code of Civil Procedure § 1021.5 as follows:

Upon motion, a court may award attorneys’ fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.

(Code Civ. Proc., § 1021.5.)

Per the above statute, such fees may be sought “[u]pon motion,” and “[t]here is no requirement that the intent to seek attorney fees under section 1021.5 must be pleaded in the underlying action..” (Washburn v. City of Berkeley (1987) 195 Cal.App.3d 578, 583.) As such striking the fees here would have no necessary bearing on their availability in a subsequent motion, based on facts adduced during the case.

The motion to strike is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

NATALIE
GUVLEKJIAN.,

Plaintiff

v.

PARAGON IMPLANT COMPANY, LLC. et
al.,

Defendants.

Case No.:
26STCV07668

Hearing Date: August 5, 2026

[TENTATIVE] RULING RE:

Defendants

Herbalife International of America, Inc., Herbalife Nutrition, Ltd., Michael
O’Johnson, John Desimone, and Stephen Gratziani’s Demurrer and Motion to
Strike Portions of the Complaint

Defendants Paragon

Implant Company, LLC, Paragon Implant MFG, LLC, Gerald Niznick and John Konheim's Demurrer to the Complaint is SUSTAINED with leave to amend as to the second cause of action for FEHA Harassment, the eighth cause of action for negligent hiring and supervision, and eleventh cause of action for intentional infliction of emotional distress. The demurrer is otherwise OVERRULED. The motion to strike is DENIED. Any amended pleading shall be filed within 20 days of this order.

Plaintiff to give notice.

Dated: August 5, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court